Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
HON. Scott A. Steiner

Date: May 27, 2026

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Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (Lewis v. Fletcher Jones Motor Cars, Inc. (2012) 205 Cal.App.4th 436, 442, fn. 1.)

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#	Case Name	Tentative
1.	2025-1489617 Masaoka vs. ALHV, LLC	Case Management Conference/ Order to Show Cause re: Dismissal
3.	2024-1395904 Ploski vs. Castro	The motion of Brown, Koro & Romag, LLP, counsel of record for Plaintiff Hunter Ploski, to be relieved as counsel for Plaintiff is granted. The court will interlineate the new trial date into the proposed order and delete references to the prior date and will signed the amended order. Upon the signing of the order, counsel shall serve the signed order on Plaintiff and all parties that have appeared. Counsel will be relieved as counsel of record for Plaintiff effective upon the filing of the proof of service of the signed order upon Plaintiff and all other parties.
4.	2025-1488642 Swannie vs. Swannie	The motion [ROA #47] of defendant Pacific Dealer Center, Inc. for relief from the default entered against it in this action is continued to July 15, 2026, at 10AM, for Pacific Dealer Center to file and serve

		an errata with the Declaration of Mark Swannie referred to and relied on within the motion and supporting memorandum but not actually attached.
5.	2026-1537551 Tortorelli vs. Costa Victoria Healthcare LLC	Defendants Costa Victoria Healthcare, LLC dba Victoria Healthcare and Rehabilitation Center's, The Ensign Group, Inc.'s, and Ensign Services, Inc.'s demurrer to Plaintiff Michelle Tortorelli's Complaint is overruled. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (*Lambert v. Carneghi* (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) 2nd cause of action for willful misconduct To establish willful misconduct, a plaintiff must prove the basic elements of a negligence cause of action—duty, breach of duty, causation, and damage—as well as the following additional elements that raise the negligent actors' acts or omissions above a basic want of ordinary care: (1) actual or constructive knowledge of the peril, (2) actual or constructive knowledge that injury is a probable, as opposed to a possible, result of the danger, and (3) conscious failure to act to avoid the peril. (*Doe v. United States Youth Soccer Assn., Inc.* (2017) 8 Cal.App.5th 1118, 1140.) Defendants argue that California law does not recognize an independent cause of action for willful misconduct, but rather finds that willful misconduct is "an aggravated form of negligence," relying on the case of *Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 526. This case that Defendants rely on do not actually stand for the idea that a demurrer can be sustained on the sole grounds that willful misconduct is a species of negligence and not a separate tort. Rather, in *Berkley* the court analyzed the pleading requirements of

this form of negligence, ultimately concluding that the plaintiff did not sufficiently allege all of the elements. (*Id*. at 526, noting that the pleading requirements of willful misconduct "are similar to negligence but stricter.")

Additionally/alternatively, Defendants argue that Plaintiff fails to allege the specific acts or omissions on the part of defendants amounting to aggravated negligence sufficient to constitute willful misconduct.

Within this case of action, Plaintiff alleges among other things, that Defendants "knew that if they did not comply with their respective duties of care, and if they did not provide adequate care, custody, supervision, assessment, reassessment, monitoring, investigation, appropriate care planning, and provision of care consistent with his plan of care, to meet his needs and prevent known risks to him, Mr. Tortorelli would probably sustain serious injury including but not limited to skin breakdown or even death." (Complaint, ¶ 48.) Plaintiff outlines the risks that Defendants allegedly were aware of, and claim that Defendants intentionally failed to care for and treat the decedent. (Complaint, ¶¶ 48-49.)

The Court finds that Plaintiff adequately pleads specific acts of willful misconduct here, in alleging that Defendants knowingly neglected the decedent, and were aware of the consequences of such neglect.

<u>3rd cause of action for negligence</u>

The elements of negligence are the existence of a legal duty of care, breach of that duty, causation, and damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.)

In the Complaint, Plaintiff alleges Defendants owed a duty of care to the decedent and breached that duty in failing "to provide such care and treatment as was necessary to meet Mr. Tortorelli's needs…." (Complaint, ¶¶55, 58.)

Defendants argue that this cause of action is barred by the one-year statute of limitations for professional negligence claims set forth in Code Civ. Proc., § 340.5. The decedent passed away on 1/18/24; this Complaint was filed on 1/2/26, more than a year after.

Under *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, claims based on a facilities' failure to provide basic custodial care are not subject to MICRA's statute of limitations set forth in Code Civ. Proc., § 340.5. (*Id*. at fn. 7.)

		"[W]hen a plaintiff asserts a claim against a health care provider on a legal theory other than professional negligence, courts must determine whether the claim is nonetheless *based on the health care provider's professional negligence,* which would require application of MICRA. [] To make that determination, courts must examine not only the legal theory alleged, but also the nature of the health care provider's alleged conduct and the legislative history of the MICRA provision at issue." (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 347 [internal citations omitted; emphasis in original].) Here, the Court finds that Plaintiff's claim for negligence against the moving defendants is not based on allegations of professional negligence. Plaintiff does not allege that the medical care provided to the decedent by the moving defendants fell below the standard of care. Rather, Plaintiff alleges an outright failure to provide care. (See e.g., Complaint, ¶ 19.) In *Holland v. Silverscreen Healthcare, Inc*. (2025) 18 Cal.5th 364, 380, the California Supreme Court stated that "a failure of staff to attend to, monitor, or assist a resident in obtaining appropriate medical care generally falls on the custodial side of the line because such omissions involve "not ... the undertaking of medical services, but... the failure to provide medical care." (Citing to *Covenant Care, supra,* 32 Cal.4th at 783.) The Supreme Court held that "allegations that a skilled nursing facility failed to provide "nutrition, hydration, and medication" and left the patient "in his bed, unattended and unassisted, for excessively long periods," causing death from starvation, dehydration, and sepsis stated a claim of custodial neglect, rather than professional negligence." (*Holland, supra,* 18 Cal.5th 364 at 380.) Similar allegations are stated in Plaintiff's Complaint, here. Accordingly, the demurrer is overruled. Plaintiff shall give notice.
6.	2026-1545921 King Shin Ship Management Co. vs. Beyond Loan 1 LLC	Plaintiff King Shin Ship Management Co., Limited's ("Plaintiff") application for right to attach order and order for issuance of writ of attachment after hearing, against defendant Beyond Loan 1 LLC ("Defendant"), is denied.

		Plaintiff moves, under CCP section 483.010, for the issuance of a writ of attachment against Defendant in the amount of $100,000.00. Defendant proffers evidence that Debenture No. 1 includes an arbitration provision, which provides, in relevant part, that "any claim, dispute, or controversy of whatever nature arising out of or relating to this Debenture, including, without limitation, any action or claim based on tort, contract, or statute . . . shall be resolved by final and binding arbitration … before a single arbitrator … selected from and administered by JAMS Inc." (ROA 75—Ye Decl. at ¶ 8, Exh. 1 [Debenture No. 2 at § 15].) Additionally, Defendant has filed a motion to compel arbitration and to say proceedings. (ROA 67.) Defendant contends Plaintiff has failed to meet the standard required for obtaining provisional relief when a dispute is subject to arbitration. CCP section 1281.8 provides, in relevant part, that: "A party to an arbitration agreement may file in the court in the county in which an arbitration proceeding is pending, *or if an arbitration proceeding has not commenced*, in any proper court, an application for a provisional remedy in connection with an arbitrable controversy, *but only upon the ground that the award to which the applicant may be entitled may be rendered ineffectual without provisional relief*." (Code Civ. Proc., § 1281.8, subd. (a), emphasis added.) There is no dispute that Defendant is in the process of selling certain real property in Texas and intends to use the proceeds to repay its creditors. Plaintiff has not shown that the arbitration award to which it may be entitled would be "rendered ineffectual" without provisional relief. The application is denied without prejudice to Plaintiff seeking renewal if such facts can be stated. Defendant shall give notice of the ruling.
7.	2021-1231301 Gulham vs. Younge	The Court grants Cross-Defendant Yama Gulham's unopposed Motion for judgment on the pleadings as to the third cause of action for malicious prosecution in Cross-Complainants Michael A. Younge and Amany Simmonds' Cross-Complaint. Younge and Simmonds chose not to oppose this Motion, thereby acknowledging its merit. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) The Court notes that a First Amended Cross-Complaint was filed on 3/6/23. (ROA 97.) But this was filed while an Anti-SLAPP motion was pending. A plaintiff (or cross-complaint) is not permitted to amend the complaint before the hearing on the anti-SLAPP motion. (*Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1280.) Thus, the First Amended Cross-Complaint is improper and stricken.

		Moving to the merits, a motion by defendant (or cross-defendant) be made on the grounds that the complaint (or any cause of action therein) “does not state facts sufficient to constitute a cause of action against that defendant.” (CCP § 438(c).) The Cross-Complaint alleges in relevant part that the Complaint in this case was maliciously prosecuted. “To establish a cause of action for the malicious prosecution of a civil proceeding, a plaintiff must plead and prove that the prior action (1) was commenced by or at the direction of the defendant and was pursued to a legal termination in his, plaintiff’s, favor; (2) was brought without probable cause; and (3) was initiated with malice.” (*Bertero v. National General Corp.* (1974) 13 Cal.3d 43, 50, internal citations omitted.) “A claim for malicious prosecution need not be addressed to an entire lawsuit; it may … be based upon only some of the causes of action alleged in the underlying lawsuit.” (*Franklin Mint Co. v. Manatt, Phelps & Phillips, LLP* (2010) 184 Cal.App.4th 313, 333.) “[F]avorable termination requires favorable resolution of the underlying action in its entirety, not merely a single cause of action. ‘[I]f the defendant in the underlying action prevails on all of the plaintiff’s claims, he or she may successfully sue for malicious prosecution if any one of those claims was subjectively malicious and objectively unreasonable. But if the underlying plaintiff succeeds on any of his or her claims, the favorable termination requirement is unsatisfied and the malicious prosecution action cannot be maintained.’ “ (*Citizens of Humanity, LLC v. Ramirez* (2021) 63 Cal.App.5th 117, 128, internal citation omitted; *Ray v. First Federal Bank* (1998) 61 Cal.App.4th 315, 319, favorable termination may depend on appellate proceedings after initial decision in the trial court has been recognized in other cases; see e.g. *Daon Corp. v. Place Homeowners’ Ass’n* (1989) 207 Cal.App.3d 1449, 1456—order dismissing cross-complaint against third party not appealable “final judgment” because third party still remained in action in same and different capacities.) Here, the Cross-Complaint fails to allege all elements of the malicious prosecution claim. The Court therefore grants the unopposed Motion. Younge and Simmonds have failed to show how they could amend to state a claim. Thus, leave to amend is denied. Gulham is ordered to serve notice.

10.	2025-1474963 Hood vs. Avis Budget Car Rental, LLC	Defendant Avis Budget Car Rental, LLC's ("Avis") Motion to Dismiss is granted. Avis's request for judicial notice (ROA 71) is granted. (Evid. Code § 452, subd. (d).) Avis moves, under CCP section 391, to dismiss the action, with prejudice, on the grounds that Hood "is a vexatious litigant, subject to a prefiling order" and "was required to obtain an order from the presiding judge to bring this action," but did not fulfill this requirement. (Mot. at p. 3.) A "vexatious litigant" is defined to include any person, "[i]n any litigation while acting in propria persona," who "repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 391, subd. (b)(3).) Where a person is found to be a "vexatious litigant," the court may "enter a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. Disobedience of the order by a vexatious litigant may be punished as a contempt of court." (Code Civ. Proc., § 391.7, subd. (a).) If such an order is entered, the presiding judge or justice "shall permit the filing of that litigation only if it appears that the litigation has merit and has not been filed for the purposes of harassment or delay"; security may also be required. (Code Civ. Proc., § 391.7, subd. (b).) The clerk may not file any litigation presented by a vexatious litigant subject to a prefiling order "unless the vexatious litigant first obtains an order from the presiding justice or presiding judge permitting the filing." However, if the clerk "mistakenly files the litigation without the order, any party may file with the clerk and serve, or the presiding justice or presiding judge may direct the clerk to file and serve, on the plaintiff and other parties a notice stating that the plaintiff is a vexatious litigant subject to a prefiling order as set forth in subdivision (a)." (Code Civ. Proc., § 391.7, subd. (c).) "The filing of the notice shall automatically stay the litigation." Unless the plaintiff obtains an order from the presiding justice or presiding judge permitting the filing of the litigation, within 10 days of the filing of that notice, the litigation "shall be automatically dismissed." (*Id.*) Here, Avis has proffered uncontroverted evidence that Hood is subject to a prefiling order entered in Los Angeles Superior Court on or about 3/28/16. (ROA 71.) The record also reflects that, on or about 2/2/26, Avis gave written notice that Hood is a vexatious litigant subject to a prefiling order. (ROA 75.)

		In his opposition, Hood does not deny that he is a vexatious litigant subject to a prefiling order. Nor does Hood deny that he has failed to obtain a prefiling order for this action. The only basis for Hood's opposition is that Hood did not learn Avis had not filed a response until the CMC on 1/29/26, and believes he should have been able to obtain default against Avis before it filed this motion on 2/2/26. These arguments lack merit, because it is not Avis's duty to inform Hood of whether it is in default. It is "well established by the case law that where a pleading is belatedly filed, but at a time when a default has not yet been taken, the plaintiff has, in effect, *granted the defendant additional time within which to plead and he is not strictly in default*." (*Goddard v. Pollock* (1974) 37 Cal.App.3d 137, 141, emphasis added.) Accordingly, the Clerk properly rejected Hood's multiple attempts to request entry of default, because Avis had already filed its response before Hood filed its requests. Because Hood is subject to a prefiling order and has not obtained an order from the presiding judge permitting the filing of this action, the motion is granted. The Court orders this entire action is dismissed pursuant to CCP section 391.7, subd. (c).) Although Avis requests the dismissal be "with prejudice," the Court dismisses this action without prejudice. (See *Kovacevic v. Avalon at Eagles' Crossing Homeowners Assn.* (2010) 189 Cal.App.4th 677, 687.) Avis shall give notice of the ruling.
11.	2025-1507567 Lifestarts, LLC. vs. CA-RSJ Holdings, LLC.	The Court sustains Defendant CA-RSJ Holdings, LLC's Demurrer to Plaintiffs Lifestarts LLC, Chris Knierim, and David Parker's First Amended Complaint (FAC) with 20 days leave to amend. <u>Request for Judicial Notice</u> Defendant's unopposed request for judicial notice is granted. The Lease is incorporated into the FAC and is the subject of the breach of contact cause of action. Its authenticity is not disputed and Defendant does not oppose the request. <u>Merits</u> 1. <u>Negligence</u> All persons are responsible for injuries caused by their lack of ordinary care in managing their property. (Civ. Code § 1714(a); *Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659, 672.) A landowner

may have an affirmative duty to prevent harm as a result of ownership and control of land or as a result of a special relationship (e.g., landlord-tenant, business-customer, adult-child). (*Sprecher v. Adamson Companies* (1981) 30 Cal.3d 358, 368.)

Here, Defendant argues that Plaintiffs have not properly alleged facts to show a duty of care. The Court agrees.

Plaintiffs alleges that Defendant had a duty to "maintain and repair" with regard to the plumbing of the property. (FAC, ¶76.) Plaintiffs further allege that The Lease Agreement obligated Defendants to make repairs and pay the cost of repairs, except for costs incurred caused by negligence or improper use by Plaintiffs. (FAC, ¶20.)

Specifically, Plaintiffs allege that starting in September of 2023, Plaintiffs notified Defendant of leaks in the bathroom ceiling. (FAC, ¶¶23, 24.) Plaintiffs allege that a 7-eleven vendor informed the Plaintiffs that the leaks were likely caused by the refrigeration line running into the 7-eleven store located directly below the East 17th street property. The Plaintiffs told this to the Defendants and were ignored. (FAC, ¶25.) Eventually, mold was identified. (FAC, ¶30.)

But the Lease designates this duty to the Plaintiff Lifestarts.

Section 22.A provides that "Tenant shall, at its sole cost and expense, maintain the Leased Premises in good, neat, clean and sanitary condition and repair." Lifestarts' maintenance obligation "shall include, without limitation, maintenance, replacement and repair of all heating, electrical and air conditioning equipment, plumbing, pipes, wiring, conduit, sprinkler systems, if any, lighting, floors, interior walls and partitions . . . and all other improvements comprising a part of the Leased Premises, and whether interior or exterior, except as may be required by reason of condemnation or damage by fire or casualty." (Lease § 22.A; see also *Garcia v. D/AQ* Corp. (2020) 57 Cal.App.5th 902, 908, exculpatory clause in the parties' commercial lease expressed clear intent to exempt defendant from liability for injury to plaintiff, parties knowingly bargained for this protection, no public interest was involved, and plaintiff did not allege or present evidence of intentional wrongdoing, gross negligence, or active negligence.)

The Lease does, however, contain a section of repairs that are to be maintained by the Landlord. (Lease §22(B).)

But based on the allegations in the FAC, it is not clear to the Court that the alleged leaks were the responsibility of the Landlord to repair.

Plaintiffs also alleges that Defendant Landlord owes duties of habitability and repair under Civil Code § 1941.1, 1102, 1102.17, and Health and Safety Code § 17910.

But these sections are for residential properties or leases with an option to purchase.

Plaintiffs also cite Health and Safety Code § 26147 et seq.

Section 26147 requires commercial property landlords to provide written disclosure to prospective and current tenants when mold is known to either exceed permissible exposure limits or pose a health threat. (Health & Saf. Code § 26141(a).) But these disclosure requirements (Health & Saf. Code § 26140 et seq.) do not apply where the tenant is contractually responsible for maintenance of the property, including remedial action. (See Health & Saf. Code § 26144.)

Thus, the Demurrer is sustained.

2. Nuisance

A nuisance is broadly defined as a nontrespassory interference with the use and enjoyment of land. (*San Diego Gas & Elec. Co. v. Sup.Ct. (Covalt)* (1996) 13 Cal.4th 893, 937; see Civ. Code § 3479—"anything injurious to health … [or] indecent or offensive to the senses, or an obstruction to free use of property so as to interfere with comfortable enjoyment of life or property …") A private nuisance interferes with the use and enjoyment of plaintiff's private property. (*Friends of H Street v. City of Sacramento* (1993) 20 Cal.App.4th 152, 159-162; *Adams v. MHC Colony Park Ltd. Partnership* (2014) 224 Cal.App.4th 601, 610—to succeed on private nuisance claim, plaintiff must prove injury "specifically referable" to use and enjoyment of plaintiff's land; Rest.2d Torts § 821D.)

Plaintiff must either have a possessory interest in the land affected (e.g., as owner or tenant in possession) or be the holder of an easement for profit or a nonpossessory estate adversely affected by the interference. (Rest.2d Torts § 821E.)

As an initial matter, the FAC only alleges that Defendant Lifestarts is the contracting party in the Lease, not Knierim and Parker. (FAC ¶ 15.)

The elements of an action for private nuisance are: (1) the plaintiff must prove an interference with his use and enjoyment of his property; (2) the invasion of the plaintiff's interest in the use and

		enjoyment of the land must be substantial, in that it causes plaintiff to suffer substantial actual damage; and (3) the interference with the protected interest must not only be substantial, but it must also be unreasonable, in that it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land. (*Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.5th 248, 262.) Under California law, nuisance liability attaches only to a party who created, assisted in creating, or maintained the nuisance. (*Kaura v. Stabilis Fund II, LLC* (2018) 24 Cal. App. 5th 420, 434.) Here, as set forth above, it appears that Plaintiff Lifestarts had to maintain the plumbing per the Lease. Thus, the allegations are insufficient to show that Defendant caused, created, or maintained, the nuisance. Thus, the Demurrer is sustained. 3. <u>Breach of contract</u> "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; CACI 303.) Where the cause of action for breach of contract is predicated on a written contract, the terms of the contract must be stated verbatim in the complaint or, in the alternative, the contract must be attached to and incorporated into the complaint. (*Otworth v. Southern Pac. Transportation Co.* (1985) 166 Cal.App.3d 452, 458–459.) This is not met. Additionally, again, the only party to the Lease appears to be the corporate Plaintiff. The FAC alleges that Plaintiff Chris Knierim executed the lease as Guarantor. (FAC, ¶16.) This agreement is not attached to the FAC; but even if it were, there is no specific provision identified that Defendant purportedly breached. Defendant also challenges the element of breach as to the Lease because no specific Lease provision is referenced. It appears to be Plaintiff's duty under the Lease to keep the property in good repair. Plaintiff alleges that Defendant breached the contract by "failing to provide a habitable property that was clean, without defect,

		sanitary, and without conditions harmful to the health and safety of the Plaintiffs". (FAC, ¶104.) Commercial leases are different than residential leases. There is no implied warranty of habitability. Instead, the landlord will not be held to any duty of repair unless the lease expressly so provides. (*Glenn R. Sewell Sheet Metal, Inc. v. Loverde* (1969) 70 Cal.2d 666, 671; *Del Taco, Inc. v. University Real Estate Partnership V* (2003) 111 Cal.App.4th 16, 23.) Similarly, absent provision in the lease, tenants are not under any "general" duty to correct defective conditions except to the extent necessary to prevent waste or to rectify dilapidations caused by their own lack of care. (*Glenn R. Sewell Sheet Metal, Inc. v. Loverde* (1969) 70 C2d 666, 671, 75 CR 889, 892.) However, if the lease does impose repair and maintenance obligations on the tenant, the extent of obligations actually assumed by the tenant is determined under the same rules governing the tenant's contractual obligation to "comply with all laws". (*Brown v. Green* (1994) 8 Cal.4th 812, 823, fn. 3; *Glenn R. Sewell Sheet Metal, Inc. v. Loverde, supra*, 70 Cal.2d at 674, fn. 10.) Further, commercial tenants do not have a statutory "repair and deduct" remedy akin to that afforded residential tenants (Civ. Code § 1942). So long as they remain in possession, the tenants must continue to pay the agreed-upon rent. (Schulman v. Vera (1980) 108 Cal.App.3d 552, 560-561.) Thus, commercial landlords and tenants can agree, in the lease or otherwise, to waive or modify any rights and obligations otherwise granted or imposed by statute. (Civ. Code § 3268; *250 L.L.C. v. PhotoPoint Corp. (USA)* (2005) 131 Cal.App.4th 703, 719-721; *see Frittelli, Inc. v. 350 North Canon Drive, LP* (2011) 202 Cal.App.4th 35, 45-46—commercial lease's exculpatory clause exempted landlords from liability for breach of lease, breach of implied covenant of quiet enjoyment, rescission and ordinary negligence based on landlord's alleged interference with tenancy during shopping center remodeling, barring tenant's claims as matter of law; *Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 512-513 & fns. 6 & 7—shopping center lease waiving tenant's right to terminate for landlord's default and limiting tenant's remedies to damages and/or injunction effectively waived right to assert constructive eviction for breach of coven.) When the lease includes a covenant by the landlord to keep any part of the premises, roof, walls, or common area in repair, the extent of the landlord's duty is measured by the scope of the covenant itself.

		(*Royal Neckwear Co. v. Century City, Inc.* (1988) 205 Cal.App.3d 1146, 1153; *Mattal v. American Trust Co.* (1962) 208 Cal. App. 2d 645, 649–650.) The allegations here clash with the Lease terms that allocate the duty of repair of plumbing issues to Plaintiff. Thus, the Demurrer is sustained. 4. <u>Constructive eviction</u> When a landlord has a duty to make a repair, fails to do so, and the landlord's failure to repair renders a substantial portion of the premises unfit for the purposes intended or deprives the tenant of the beneficial use of a material portion of the premises for a substantial period of time, there may be a constructive eviction that allows the tenant to terminate the lease, vacate the premises, and recover the damages caused by the constructive eviction. (*Groh v. Kover's Bull Pen, Inc*. (1963) 221 Cal.App.2d 611, 614.) Here, this overlaps with the issues above because the Lease allocates repairs to Plaintiff. Further, Plaintiffs have not shown an independent duty. Thus, the Demurrer is sustained. 5. <u>Leave to Amend</u> "Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of *whether leave to amend is requested or not*." (*McDonald v. Sup.Ct. (Flintkote Co.)* (1986) 180 Cal.App.3d 297, 303-304; *Tarrar Enterprises, Inc. v. Associated Indemnity Corp*. (2022) 83 Cal.App.5th 685, 688-689; *City of Stockton v. Sup.Ct. (Civic Partners Stockton, LLC)* (2007) 42 Cal.4th 730, 747—where plaintiff has not had opportunity to amend complaint in response to demurrer, "leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment"). Here, both the Landlord and Tenant owed duties of repair. Plaintiff(s) are provided 20 days leave to allege that the leaks were Defendant's duty to repair per the Lease and/or statutes that apply to commercial properties (not residential). The individual Plaintiffs must allege their standing to sue/a duty owed to them individually, as to each cause of action.

		Defendant shall serve notice of this ruling.
13.	2024-1393091 Chambers vs. Johnson	"Chambers")) for an order sealing the unredacted Exhibit 18 Plaintiff submits in opposition to the motion for summary adjudication filed by Defendant David Johnson ("Johnson") and in opposition to the motion for summary adjudication filed by Defendant Adrian Dehghanmanesh ("Dehghanmanesh") are denied. The unopposed motions by Johnson for an order sealing the unredacted Exhibit 7 submitted by Plaintiff in opposition to Johnson's motion for summary adjudication and in opposition to Dehghanmanesh's motion for summary adjudication are denied. Johnson's motion for summary adjudication is DENIED. Dehghanmanesh's motion for summary adjudication is denied. **MOTIONS TO SEAL** <u>Applicable legal authority</u> "A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application *must* be accompanied by a memorandum *and* a declaration containing facts sufficient to justify the sealing." (Cal. Rules of Ct., Rule 2.551(b)(1) [emphasis added].) A copy of the record to be filed under seal must be lodged with the court when the motion or application is made, unless good cause exists for not lodging it or the record has previously been lodged under subpart (3)(A)(i). (Cal Rules of Ct., Rule 2.551(b)(4).) Pending the determination of the motion or application, the lodged record will be conditionally under seal. (*Id.*) The Court may order that a record be filed under seal only if it expressly finds facts that establish that: • there exists an overriding interest that overcomes the right of public access to the record • the overriding interest supports sealing the record • a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed • the proposed sealing is narrowly tailored • no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Ct., Rule 2.550(d).) Although a "contractual obligation not to disclose can constitute an overriding interest," the moving party must still show prejudice will result if the document is not sealed. (*Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1283; *see also* Cal.

		Rules of Ct., Rule 2.551(a) ["The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties."].) The rules expressly implement the First Amendment principles espoused in *NBC Subsidiary* (i.e., California recognizes a constitutional right of access to certain court documents grounded in the First Amendment) and establish a presumption that "court records ... be open" unless the law requires confidentiality. (*Overstock.Com, Inc. v. Goldman Sachs Grp., Inc.* (2014) 231 Cal.App.4th 471, 486.) <u>Merits</u> Plaintiff did not meet his burden to show Exhibit 18 should be sealed. Johnson did not meet his burden to show Exhibit 7 should be sealed. (Cal. Rules of Ct., Rules 2.550 and 2.551.) Although both parties showed the information was designated as confidential pursuant to their stipulated protective order, that alone is not sufficient to meet their burden to show the exhibits should be sealed. The Court notes the two exhibits include financial information that would be subject to privacy protection; however, that is not all that is required for sealing. The Court also notes the Court did not rely upon either exhibit in making its determination on Defendants' respective motions for summary adjudication. Unless Plaintiff advises the Court that Plaintiff no longer intends to rely on these two exhibits, the unredacted versions of Exhibits 7 and 18 will be placed in the public record. **MOTIONS FOR SUMMARY ADJUDICATION** As an initial matter, the Court notes Plaintiff represented in four separately filed notices of lodging that Plaintiff filed unredacted copies of the exhibits on April 23, 2026. However, the two sets of Appendixes of Evidence totaling four volumes for each opposition still appear to be redacted. In addition, each of the four volumes for the two sets included a caption that stated the document was "redacted materials filed conditionally under seal." These exhibits appear identical to the redacted copies that were delivered to the Court. Plaintiff should be prepared to address whether Plaintiff filed unredacted copies as ordered by the Court on April 22, 2026, and explain why the confusing caption was included on the filings if the exhibits were not redacted.

In support of Defendants' replies, each defendant submitted a reply separate statement. "The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers." (Code Civ. Proc., § 437c, subd. (b)(4).) The Court declines to consider Johnson's reply separate statement and declines to consider Dehghanmanesh's reply separate statement.

Plaintiff's objected to Johnson's separate statement and Dehghanmanesh's separate statement. Plaintiff did not object to the evidence supporting the purported material fact. Plaintiff's objections were improper and overruled.

The Court also notes Defendants' motions for summary adjudication are substantively identical. (Dehghanmanesh's Notice of Motion, ROA No. 336, i, fn. 1.) Defendants rely on the same evidence and the same purportedly undisputed material facts to support their motions.

<u>Applicable legal authority</u>

In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (*Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.* (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (*Ibid.*) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.) "A court identifies the issues framed by the pleadings, determines whether the moving party's showing has established facts which negate the opponent's claim and justify a judgment in the moving party's favor, and if the summary judgment motion is meritorious on its face, the court will look to whether the opposition demonstrates there are triable, material factual issues." (*Clark v. Baxter Healthcare Corp.* (2000) 83 Cal.App.4th 1048, 1054.) The opposing party must show by reference to specific facts the existence of a triable issue as to that cause of action. (*Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at p. 850.)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).)

A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff's allegations as a matter of law. (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at pp. 854-855; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; *see Sheiding v. Dinwiddie Constr. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

<u>Merits</u>

Johnson's issue 1: There are no triable issues of material fact as to Chambers's Fourth Cause of Action for violation of Penal Code § 496, because Chambers cannot prove that the property in question was stolen or that Johnson concealed stolen property.

And

		Dehghanmanesh's issue 1: There are no triable issues of material fact as to Chambers's Fourth Cause of Action for violation of Penal Code § 496, because Chambers cannot prove that the property in question was stolen or that Dehghanmanesh concealed stolen property. Penal Code section 496, subdivision (a) provides as follows: Every person who buys or receives any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or who conceals, sells, withholds, or aids in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained, shall be punished by imprisonment in a county jail for not more than one year, or imprisonment pursuant to subdivision (h) of Section 1170. However, if the value of the property does not exceed nine hundred fifty dollars ($950), the offense shall be a misdemeanor, punishable only by imprisonment in a county jail not exceeding one year, if such person has no prior convictions for an offense specified in clause (iv) of subparagraph (C) of paragraph (2) of subdivision (e) of Section 667 or for an offense requiring registration pursuant to subdivision (c) of Section 290. A principal in the actual theft of the property may be convicted pursuant to this section. However, no person may be convicted both pursuant to this section and of the theft of the same property. (Pen. Code, § 496, subd. (a).) "Every person who shall feloniously steal, take, carry, lead, or drive away the personal property of another, or who shall fraudulently appropriate property which has been entrusted to him or her, or who shall knowingly and designedly, by any false or fraudulent representation or pretense, defraud any other person of money, labor or real or personal property, or who causes or procures others to report falsely of his or her wealth or mercantile character and by thus imposing upon any person, obtains credit and thereby fraudulently gets or obtains possession of money, or property or obtains the labor or service of another, is guilty of theft." (Pen. Code, § 484, subd. (a).) A violation of Penal Code section 496, subdivision (a) includes obtaining property by false pretenses. (*Bell v. Feibush* (2013) 212 Cal.App.4th 1041, 1048.) "Proof of the crime of receiving stolen property requires establishment that the property in question was stolen, that the

		defendant was in possession of it, and that the defendant knew the property to be stolen." (*People v. Anderson* (1989) 210 Cal.App.3d 414, 420; *accord, Hueso v. Select Portfolio Servicing, Inc.* (S.D. Cal. 2021) 527 F.Supp.3d 1210, 1229, citing *Verdugo-Gonzalez v. Holder* (9th Cir. 2009) 581 F.3d 1059, 1061, citing *People v. Anderson* (1989) 210 Cal. App. 3d 414, 420 ["To state a violation of the statute, a plaintiff must plead three elements: '(a) the property was stolen, and (b) the defendant was in possession of it, (c) knowing it was stolen.'"].) In a civil action, "the elements required to show a violation of section 496(a) are simply that (i) property was stolen or obtained in a manner constituting theft, (ii) the defendant knew the property was so stolen or obtained, and (iii) the defendant received or had possession of the stolen property." (*Switzer v. Wood* (2019) 35 Cal.App.5th 116, 126.) The California Supreme Court noted that "not all commercial or consumer disputes alleging that a defendant obtained money or property through fraud, misrepresentation, or breach of a contractual promise will amount to a theft. To prove theft, a plaintiff must establish criminal intent on the part of the defendant beyond 'mere proof of nonperformance or actual falsity.' (*People v. Ashley* (1954) 42 Cal.2d 246, 264, 267 P.2d 271.)" (*Siry Investment, L.P. v. Farkhondehpour* (2022) 13 Cal.5th 333, 361-362.) Where the facts alleged show Defendants did not act innocently or inadvertently, but with careful planning and deliberation, the requisite criminal intent is shown. (*Id.*, at 362.) The CSC noted that the CSC "need not, and do not, decide whether" a showing of additional conduct is required to establish a violation of section 496, subdivision (a). (*Siry Investment, L.P. v. Farkhondehpour*, 13 Cal.5th at 351, fn. 12.) Johnson met his initial burden to show that Plaintiff cannot show theft or criminal intent. (Johnson's Material Fact ["JMF"] No. 1-4, 6, and 9-11.) Plaintiff met his shifted burden and raised a triable issue as to whether Johnson coordinated with Dehghanmanesh through planning and deliberation to conceal information regarding Meridian's finances and the distributions to the two partners. (Plaintiff's Appendix of Evidence, , Vol. 1, ROA No. 566, Exhibit 4, 76:1-17 and 201:8-14; Exhibit 5, 72:6-73:4 and 86:22-25; Exhibit 6, 186:10-190:1; Plaintiff's Appendix of Evidence, Vol. 3, ROA No. 574, Exhibit 10, Page 496, DEHG 001805, Page 611, DEHG 001920, Page 646, DEHG 001955, and Page 825, DEHG 002314; Plaintiff's Appendix of Evidence, Vol. 4, ROA No. 570, Exhibit 14, Page 451, DEHG 001760; Exhibit 15; Exhibit 23; and Exhibit 25.)

		Accordingly, Johnson's motion as to this issue is denied. Plaintiff's fourth cause of action alleges "Dehghanmanesh is liable for aiding and abetting Johnson's theft. He knowingly assisted Johnson's conversion duty by transferring funds to Johnson, failing to inform Chambers of the transfers, and by concealing the transfers and payments through fraudulent business records." (Complaint, ¶ 114.) Dehghanmanesh met his initial burden to show Plaintiff cannot show theft or criminal intent by Johnson and as such, Dehghanmanesh would not be liable for aiding and abetting Johnson when no theft is shown. (Dehghanmanesh's Material Fact ["DMF"] No. 1-4 , 6, and 9-11.) Plaintiff met his shifted burden and raised a triable issue as to whether Johnson coordinated with Dehghanmanesh through planning and deliberation to conceal information regarding Meridian's finances and the distributions to the two partners. (Plaintiff's Appendix of Evidence, Vol. 1, ROA No. 580, Exhibit 4, 76:1-17 and 201:8-14; Exhibit 5, 72:6-73:4 and 86:22-25; Exhibit 6, 186:10-190:1; Plaintiff's Appendix of Evidence, Vol. 3, ROA No. 586, Exhibit 10, Page 496, DEHG 001805, Page 611, DEHG 001920, Page 646, DEHG 001955, and Page 825, DEHG 002314; Plaintiff's Appendix of Evidence, Vol. 4, ROA No. 582, Exhibit 14, Page 451, DEHG 001760; Exhibit 15; Exhibit 23; and Exhibit 25.) Accordingly, Dehghanmanesh's motion as to this issue is denied. **Johnson's and Dehghanmanesh's issue 2: There are no triable issues of material fact as to Chambers's claim for treble damages in his Fourth Cause of Action for violation of Penal Code § 496, because his claim is barred by the one-year statute of limitations set forth in Cal. Code Civ. Proc. § 340.** Treble damages under Penal Code section 496 are not a proper matter for summary adjudication. "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense,

a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).) Here, Johnson and Dehghanmanesh each seek summary adjudication that there is no merit to Plaintiff's treble damages sought pursuant to Penal Code section 496, subdivision (c). Defendants are not seeking summary adjudication on a claim for damages, as specified in Section 3294 of the Civil Code. (Code Civ. Proc., § 437c, subd. (f)(1).) Accordingly, the motions are denied.

The Court notes even if Defendants had properly sought summary adjudication on this issue pursuant to CCP section 437c, subdivision (t), which Defendants did not, the motion is still denied.

"Any person who has been injured by a violation of subdivision (a) or (b) may bring an action for three times the amount of actual damages, if any, sustained by the plaintiff, costs of suit, and reasonable attorney's fees." (Pen. Code, § 496, subd. (c).)

CCP section 338, subdivision (a) sets forth a 3-year statute of limitations for an action "upon a liability created by statute, other than a penalty or forfeiture." (Code Civ. Proc., § 338, subd. (a).) CCP section 340, subdivision (a) provides for a 1-year statute of limitations for an action "upon a statute for a penalty or forfeiture, if the action is given to an individual, or to an individual and the state, except if the statute imposing it prescribes a different limitation." (Code Civ. Proc., § 340, subd. (a).)

"Claims based upon statutes which provide for mandatory recovery of damages additional to actual losses incurred, such as treble damages, are considered penal in nature, and thus are governed by the one-year limitations period under section 340, subdivision 1." (*Menefee v. Ostawari* (1991) 228 Cal.App.3d 239, 243.) "Case law has consistently applied the one-year limitations period to statutes that provide for recovery of actual damages and a mandatory additional penalty." (*Prudential Home Mortgage Co. v. Superior Court* (1998) 66 Cal.App.4th 1236, 1242.) However, not all statutorily-provided recoveries are penalties or forfeitures. (*Holland v. Nelson* (1970) 5 Cal.App.3d 308, 312-313 [Finding Civil Code section 1812.62 that allowed the Court the option of granting treble damages is not to be construed as converting the statutory right of action into one for penal damages, and providing examples of when additional recovery did not constitute a penalty or forfeiture - Fair Labor Standards Act (29 U.S.C.A., s 216, subd. (b)), a veteran's action to recover treble damages for excess consideration charged for his home, and an action for treble damages under the Sherman Act.].)

Section 496, subdivision (c) is arguably mandatory because when the Court finds there is a violation of section 496, subdivision (a) or

		(b), the plaintiff would recover treble damages. (*See, Bell v. Feibush* (2013) 212 Cal.App.4th 1041, 1045; *Switzer v. Wood* (2019) 35 Cal.App.5th 116, 126 ["All that is required for civil liability to attach under section 496(c), including entitlement to treble damages, is that a 'violation' of subdivision (a) or (b) of section 496 is found to have occurred."].) However, unlike the statutes that were clearly punitive, section 496, subdivision (c) does not provide for recovery of treble damages *and* actual damages. Our California Supreme Court explained that section 496, subdivision (c) "was designed, not solely to deter theft, but also to provide a new civil remedy to those who have been injured by a violation of the statute." (*Siry Investment, L.P. v. Farkhondehpour* (2022) 13 Cal.5th 333, 357.) Citing to *Switzer v. Wood* (2019) 35 Cal.App.5th 116, the CSC explained: > The court in *Switzer* surmised that in light of the language chosen, the Legislature "apparently believed that *any* violation of section 496(a)," if proved, "would warrant the availability of treble damages." (*Switzer*, *supra*, 35 Cal.App.5th at p. 130.) The court explained: "The creation of an enhanced civil remedy for any person injured by the theft-related criminal offenses defined in the statute is certainly not absurd or unreasonable. Considering the nature of the offense described by the statute and the apparent goal of deterring such theft-related conduct, the provision, as literally written, of an enhanced civil remedy to 'any person' injured by that particular offense constituted a reasonable legislative policy decision. > (*Siry Investment, L.P. v. Farkhondehpour*, 13 Cal.5th at 356-357.) The *Switzer* Court also expanded that "while deterrence of theft was one of the goals of Senate Bill No. 1068, another purpose for the proposed legislation was expressly stated in the analysis provided by the Senate Committee on the Judiciary, under the heading 'Purpose,' which expressed that the bill's basic purpose was to '[e]stablish a civil remedy for persons who have been injured by another's purchase, concealment, sale, or withholding of property where such person knows the property has been stolen.' (Sen. Com. on Judiciary, Analysis of Sen. Bill No. 1068 (1972 Reg. Sess.) as amended June 26, 1972.)" (*Switzer v. Wood* (2019) 35 Cal.App.5th 116, 131-132.) Johnson cites to two unpublished federal cases that hold the statute of limitations for treble damages under Penal Code section 496, subdivision (c). Both of the unpublished cases held "a one-year statute of limitations period applies to the claim for treble damages"

		under Penal Code section 496, subdivision (c). (*Tu Le v. Prestige Community Credit Union* (C.D. Cal., Nov. 6, 2023, No. 8:22-CV-00259-JVS (KESX) 2023 WL 9689133, at *9; *May v. Google LLC* (N.D. Cal., Nov. 4, 2024, No. 24-CV-01314-BLF) 2024 WL 4681604, at *9.) However, the *Tu Le* Court also held "the civil claim under California Penal Code § 496(c) regarding recovery for costs of suit and reasonable attorney's fees is subject to a three-year statute of limitations." (*Tu Le v. Prestige Community Credit Union* (C.D. Cal., Nov. 6, 2023, No. 8:22-CV-00259-JVS (KESX) 2023 WL 9689133, at *10.) The Court finds the claim is governed by the three-year statute of limitations. (*See, Naftzger v. American Numismatic Society* (1996) 42 Cal.App.4th 421, 433-434.) Neither Johnson nor Dehghanmanesh met their initial burden to show Plaintiff's claim was barred by the applicable statute of limitations. Johnson showed Plaintiff was aware that Plaintiff's and Johnson's capital accounts were out of whack by March 30, 2022. (JMF No. 7 and 8; DMF No. 7 and 8.) Plaintiff commenced this action on February 29, 2024, less than two years after discovering the discrepancy. Because neither defendant did not meet his initial burden, the burden does not shift to Plaintiff to raise a triable issue of material fact. (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.) Accordingly, Defendants' motions are denied. Plaintiff shall give notice.
14.	2025-1517586 Je Beaute, Inc. vs. Guo	*Continued from 5/20/26 for lack of a Mandarin interpreter.*